

25SMCV01391 25SMCV01391

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25SMCV01391 Hearing Date: July 2, 2026 Dept: P

Tentative

Ruling

Anthony

Ruiz v. General Motors, LLC, Case No. 25SMCV01391

Plaintiff's

Motion for Attorneys' Fees

Hearing

Date: July 2, 2026

Background

This is a

lemon law case. Plaintiff Anthony Ruiz brought this action under the Song-Beverly Act against Defendant General Motors ("GM") in 2025, alleging GM's failure to repair or repurchase Ruiz's 2023 Cadillac Escalade following multiple attempts to repair the vehicle's powertrain.

On March

18, 2024, Ruiz filed the initial complaint.

On May 6,

2025, GM answered.

On January

2, 2026, Ruiz filed a Memorandum of Costs.

On January

5, 2026, Ruiz filed a notice of settlement and set an OSC re: Dismissal for March 6, 2026. On March 6, 2026, the Court continued the OSC re: Dismissal to June 23, 2026. On April 20, 2026, the Court continued the hearing to July 2, 2026.

Ruiz filed

this motion for attorneys' fees on January 22, 2026. GM filed opposition on June 22, 2026. Ruiz replied on June 25, 2026.

Ruiz moves

for an order granting him \$21,850.50 in attorneys' fees incurred through filing this motion, \$3,487.50 for replying to GM's opposition and appearing at hearing, and costs in the amount of \$2,231.89. (Motion for attorneys' fees, p. 1.) In opposition, GM argues that because this case was so simple, the Court should reduce Ruiz's requested fees to between \$304 and \$287 per hour for partners and \$200 and \$175 per hour for associates. (Opposition, p. 5.) GM also argues that Ruiz's attorneys overbilled for discovery work and included clerical tasks in their billing. (Id. at p. 6.) In reply, Ruiz argues that GM does not meet its burden of demonstrating that Ruiz's billing records are excessive or that Ruiz's lodestar rate is unreasonable.

Motion

for Attorney's Fees

A prevailing buyer in an action for damages and other legal remedies should receive full compensation of reasonable sums expended in pursuit of their claims against manufacturers who failed to comply with the Song-Beverly Act. (Civ. Code § 1794(d).)

"A trial court assessing attorney fees

begins with a touchstone or lodestar figure, based on the 'careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case.'" (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.) "The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. The court may also consider whether the amount requested is based

upon unnecessary or duplicative work.” (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448.)

Prevailing

Party

The

parties do not contest that Plaintiff is the prevailing party.

Reasonable

Rate

Ruiz

requests fees for four attorneys: Nancy Zhang, a former senior partner, at \$540.00/hour; Vanessa J. Oliva, a partner, at \$530.00/hour; Corinna Jiang, an associate, at \$450.00-\$465.00/hour; Sandro Manno, an associate, at \$430.00/hour; and David Gomez, a paralegal, at \$215/hour. Ruiz’s billing records show that almost all of the work on this case was done by Corinna Jiang and paralegal David Gomez. (Jiang Decl., ¶¶ 16-20.) The other attorneys contributed very little, and their billing duplicates Ms. Jiang’s work. Therefore, the Court will award fees only for Ms. Jiang and Mr. Gomez’s work.

Ms.

Jiang’s hourly rate was \$450/hour in 2025 and is now \$465/hour. These are reasonable hourly rate for an attorney of Ms. Jiang’s experience in the Los Angeles area. The speed and ease at which this case resolved does not justify the 50% hourly rate reduction that GM requests.

Mr.

Gomez’s \$215/hour rate is also reasonable for a paralegal of his experience.

Reasonable

Hours

Ruiz

requests a total of 53.4 hours of attorney and paralegal time on this matter. Per Ruiz’s billing records, 1.2 hours of that time was billed by Zhang, Oliva, and Manno. Mr. Gomez billed a total of 9.9 hours on this case. Ms. Jiang billed 42.3 hours.

GM argues

that Ruiz's fees should be reduced by approximately 9.5 hours because of excessive billing for boilerplate discovery documents and notices and billing for clerical work. (Opposition, pp. 6-7.) The Court agrees. Following a review of the parties' arguments, the Court finds the following reductions appropriate:

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Reduction

of Mr. Gomez's hours by 4.01 hours for billing for clerical tasks.

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Reduction

of Ms. Jiang's hours by 5.4 hours for excessive billing for discovery tasks.

Therefore,

Ruiz is granted fees for 36.9 hours of attorney work (.1 hours at \$465/hour in 2026, and 36.8 hours at \$450/hour in 2025) and 5.89 hours of paralegal time at \$215/hour.

Ruiz also

requests fees for 7.5 hours of attorney time replying to GM's opposition and appearing at the hearing. 6.5 hours is excessive. The Court grants 3 hours of attorney time for Ruiz's reply and appearance at the hearing, at Ms. Jiang's 2026 rate of \$465/ hour.

Ruiz also

requests costs \$2,231.89. GM does not meaningfully oppose Ruiz's requests for costs. Following a review of Ruiz's billing records, the request for costs is granted.

Conclusion

Plaintiff's

Motion for Attorneys' Fees is GRANTED in the amount of \$21,499.74 $((\$465 \times 3.1) + (\$450 \times 36.8) + (\$215 \times 5.89) + \$2,231.89)$.